

**CHAPTER 23.**

An Act to authorise the suspension of sentences of penal servitude and imprisonment passed on soldiers engaged in active service beyond the seas during the present war. A.D. 1915.
—
[16th March 1915.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

1.—(1) Where a soldier employed on active service beyond the seas during the present war is sentenced to penal servitude or imprisonment, the confirming authority to whom the sentence is submitted for confirmation may, when confirming the sentence, direct that the soldier be not committed to prison until the orders of a superior military authority have been obtained. Power to suspend sentences of penal servitude or imprisonment.

(2) A superior military authority may in the case of any such soldier so sentenced—

(a) direct that a committal to prison shall not be issued until his orders have been obtained ;

(b) suspend the sentence whether or not the soldier has already been committed to prison.

(3) Where a sentence of penal servitude or imprisonment is suspended under this section before the soldier has been committed to prison, the soldier if in custody shall be released, and, notwithstanding anything in the Army Act, the sentence shall not begin to run until the soldier is committed to prison under that sentence.

(4) Where a sentence of penal servitude or of imprisonment is suspended under this section after the soldier has been committed to prison he shall be discharged and the currency of the sentence shall be suspended until he is again committed to prison under the same sentence.

(5) Where a sentence has been suspended under this section the case may at any time, and shall at intervals of not less than three months, be reconsidered by a competent military authority,

A.D. 1915. — and if on any such reconsideration it appears to the competent military authority that the conduct of the soldier since his conviction has been such as to justify a remission of the sentence he shall remit it.

(6) A superior military authority may at any time whilst a sentence is suspended under this section order that the soldier be committed to prison, and thereupon the sentence shall cease to be suspended.

(7) Where a soldier whilst a sentence on him is so suspended is sentenced to penal servitude or imprisonment for any other offence, then, if that sentence is also suspended under this section, the authority ordering the suspension may direct that the two sentences shall run either concurrently or consecutively, so, however, that the aggregate term of imprisonment served under two or more sentences of imprisonment shall not exceed two consecutive years; and where the sentence for such other offence is a sentence of penal servitude, then, whether or not that sentence is suspended, any previous sentence of imprisonment which has been suspended shall be avoided.

(8) The powers conferred by this section shall be in addition to and not in derogation of any powers as to the mitigation, remission, commutation, or suspension of sentences conferred by the Army Act, and a superior authority under this Act shall as respects soldiers so employed as aforesaid be an authority having power to mitigate, remit, or commute sentences of penal servitude or imprisonment under subsection (2) of section fifty-seven of the Army Act.

(9) In this Act—

The expression “superior military authority” means the officer commanding in chief of any force employed on active service beyond the seas, or any general officer commanding an army comprised in that force;

The expression “competent military authority” means a superior military authority, or any general or other officer not below the rank of field officer duly authorised by a superior military authority.

Short title and
construction.

2. This Act may be cited as the Army (*Suspension of Sentences*) Act, 1915, and shall be construed as one with the Army Act.

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FOR

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